

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X  
FREDERICK JACKSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, SERGEANT AVINASH  
PATEL, Shield No. 5322, DETECTIVE KRYSTOPHER  
VALENTIN, Shield No. 3641, DETECTIVE MATTHEW  
FAGAN, Shield No. 2752, POLICE OFFICER STEVEN  
RUPNICK, Shield No. 27055, DETECTIVE SPECIALIST  
PATRICK BARRY, Shield No. 249, SERGEANT UMAR  
KHITAB, Shield No. 3522, and POLICE OFFICERS JOHN  
DOES #s 1-10 (names and number of whom are unknown at  
present),

Defendants.  
----- X

**SUMMONS**

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Kings  
County as the place of trial.

**To the above-named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
February 12, 2023

Yours, etc.

*David Hazan*

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JACOBS & HAZAN, PLLC.  
DAVID M. HAZAN, ESQ.  
Attorney for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007  
SERGEANT AVINASH PATEL, Shield No. 5322, Detective Squad Criminal Intelligence Section  
DETECTIVE KRYSTOPHER VALENTIN, Shield No. 3641, Criminal Intelligence Section  
DETECTIVE MATTHEW FAGAN, Shield No. 2752, Criminal Intelligence Unit  
POLICE OFFICER STEVEN RUPNICK, Shield No. 27055, 77<sup>th</sup> Precinct, 127 Utica Ave, Brooklyn, NY 11213  
DETECTIVE SPECIALIST PATRICK BARRY, Shield No. 249, Emergency Services Unit  
SERGEANT UMAR KHITAB, Shield No. 3522, 81<sup>st</sup> Precinct, 30 Ralph Ave, Brooklyn, NY 11221

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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THE CITY OF NEW YORK, SERGEANT AVINASH  
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PATRICK BARRY, Shield No. 249, SERGEANT UMAR  
KHITAB, Shield No. 3522, and POLICE OFFICERS  
JOHN DOES #s 1-10 (names and number of whom are  
unknown at present),

Defendants.

----- X

**INDEX NO.:**

**VERIFIED COMPLAINT**

**JURY TRIAL DEMANDED**

Plaintiff FREDERICK JACKSON, by his attorneys, Jacobs & Hazan, PLLC, as and for  
his Verified Complaint herein, alleges upon information and belief as follows:

### **PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on February 12, 2020, at approximately 6:00 am he was lawfully sleeping in his bed located at 193 Albany Avenue, Apt. 10E, Brooklyn New York 11213, at which time he was awoken by the individually named NYPD police officer defendants who were executing a search warrant that was obtained by defendants using false information. The target of the search warrant was an individual who did not live in plaintiff's apartment. The defendant officers unlawfully searched plaintiff and the entire apartment and did not recover any illegal drugs, weapons, or contraband in the possession of plaintiff or from plaintiff's apartment. The defendants damaged the front door of the apartment and property within the apartment, including but not limited to a bed frame and a dresser. The defendants unlawfully handcuffed plaintiff and falsely arrested him, without probable cause or legal justification. Defendants told plaintiff that they were arresting him because they "did not like his attitude." The defendants falsely arrested plaintiff and transported him against his will to the

77<sup>th</sup> Precinct whereat he was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. Plaintiff was released from custody at Central Booking without being charged with committing a crime, on or about February 13, 2021, approximately 24 hours after plaintiff was initially seized by the defendants. Plaintiff was released after the Kings County District Attorney's Office declined to prosecute him because it determined that the defendants lacked probable cause and had insufficient evidence to arrest and/or prosecute plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully entered and searched his apartment, searched, confined, and falsely arrested plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

### **PARTIES**

2. Plaintiff FREDERICK JACKSON is a resident of the state of New York.

3. Defendant SERGEANT AVINASH PATEL, Shield No. 5322, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant SERGEANT AVINASH PATEL, Shield No. 5322, was at all times relevant herein, assigned to the 77<sup>th</sup> Precinct and is presently assigned to the Detective Squad Criminal Intelligence Section.

5. Defendant SERGEANT AVINASH PATEL, Shield No. 5322, is being sued in his individual and official capacity.

6. Defendant DETECTIVE KRYSTOPHER VALENTIN, Shield No. 3641, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant DETECTIVE KRYSTOPHER VALENTIN, Shield No. 3641, was at all times relevant herein, assigned to the 77<sup>th</sup> Precinct, and is presently assigned to the Criminal Intelligence Section.

8. Defendant DETECTIVE KRYSTOPHER VALENTIN, Shield No. 3641, is being sued in his individual and official capacity.

9. Defendant DETECTIVE MATTHEW FAGAN, Shield No. 2752, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE MATTHEW FAGAN, Shield No. 2752, was at all times relevant herein, assigned to the 77<sup>th</sup> Precinct and is presently assigned to the Criminal Intelligence Unit.

11. Defendant DETECTIVE MATTHEW FAGAN, Shield No. 2752, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER STEVEN RUPNICK, Shield No. 27055, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER STEVEN RUPNICK, Shield No. 27055, was at all times relevant herein, assigned to the 77<sup>th</sup> Precinct.

14. Defendant POLICE OFFICER STEVEN RUPNICK, Shield No. 27055, is being sued in his individual and official capacity.

15. Defendant DETECTIVE SPECIALIST PATRICK BARRY, Shield No. 249, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant DETECTIVE SPECIALIST PATRICK BARRY, Shield No. 249, was at all times relevant herein, assigned to Emergency Services Unit.

17. Defendant DETECTIVE SPECIALIST PATRICK BARRY, Shield No. 249, is being sued in his individual and official capacity.

18. Defendant SERGEANT UMAR KHITAB, Shield No. 3522, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant SERGEANT UMAR KHITAB, Shield No. 3522, was at all times relevant herein, assigned to the 77<sup>th</sup> Precinct and is presently assigned to the 81<sup>st</sup> Precinct.

20. Defendant SERGEANT UMAR KHITAB, Shield No. 3522, is being sued in his individual and official capacity.

21. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees

of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

27. On February 12, 2020, at approximately 6:00 am plaintiff was lawfully sleeping in his bed located at 193 Albany Avenue, Apt. 10E, Brooklyn New York 11213, at which time he was awoken by the individually named NYPD police officer defendants who were executing a search warrant that was obtained by defendants using false information.

28. The target of the search warrant was an individual who did not live in plaintiff's apartment.

29. Plaintiff lived in his apartment with his wife, his two 13-year-old twin daughters and his son.

30. When plaintiff heard the police break down the front door of his apartment, he thought his apartment was being burglarized, and he came out of his bedroom holding a baseball bat.

31. Plaintiff was met by officers who pointed what plaintiff thought were machine guns at his head and screamed at plaintiff to drop the bat.

32. Plaintiff complied with the officers' order and dropped the baseball bat onto the ground.

33. The defendant officers unlawfully searched plaintiff and the entire apartment and did not recover any illegal drugs, weapons, or contraband in the possession of plaintiff or from plaintiff's apartment.

34. The defendants damaged the front door of the apartment and property within the apartment, including but not limited to a bed frame and a dresser.

35. The defendants refused to tell plaintiff why they were searching his apartment.

36. The officers unlawfully handcuffed plaintiff and falsely arrested him, without probable cause or legal justification.

37. Defendants told plaintiff that they were arresting him because they “did not like his attitude.”

38. The defendants falsely allege that they recovered a designer purse containing a gun, in the courtyard outside of plaintiff’s apartment that the defendants claim was thrown out of plaintiff’s son’s bedroom window when the officers executed the search warrant at the apartment.

39. Plaintiff’s son’s bedroom is located at the opposite end of the apartment from plaintiff’s bedroom, and plaintiff was present inside of his bedroom when the officers executed the search warrant.

40. The defendants falsely arrested plaintiff without probable cause and transported him against his will to the 77<sup>th</sup> Precinct whereat he was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours.

41. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued.

42. Plaintiff was released from custody at Central Booking without being charged with committing a crime, on or about February 13, 2021, approximately 24 hours after plaintiff was initially seized by the defendants.

43. Plaintiff was released after the Kings County District Attorney’s Office declined to prosecute him because it determined that the defendants lacked probable cause and had insufficient evidence to arrest and/or prosecute plaintiff.

44. At no time relevant herein did defendants observe plaintiff in possession of firearm.

45. At no time relevant herein did defendants possess any evidence that indicated plaintiff had knowledge a firearm was at location.

46. The District Attorney’s Office concluded that there was insufficient nexus to connect plaintiff to the firearm allegedly recovered in the courtyard outside of plaintiff’s apartment building.

47. At no time relevant herein did defendants recover any illegal drugs, weapons or contraband that was in the possession, custody, or control of plaintiff.

48. At no time relevant herein did the police officers possess objective facts that established reasonable suspicion or probable cause to believe he committed a crime or violated the law in any way.

49. The defendants did not possess probable cause or any legal justification to arrest plaintiff or charge him with committing a crime.

50. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

51. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

52. The defendant police officers obtained a search warrant to search plaintiff's apartment for an individual who did not live there, but the individual the officers were looking for was plaintiff's step-son.

53. Upon information and belief, the defendant officers believed that if they arrested plaintiff they could essentially hold him as ransom and tell his step-son that if he turned himself in and admitted to the crime they would release plaintiff from custody and drop the charges against him.

54. Several of the officers involved in plaintiff's arrest have histories of being disciplined for misconduct including for fabricating allegations against members of the public.

55. Defendant Police Officer Patrick Barry was previously caught defrauding the NYPD.

56. Specifically, PO Barry was caught falsely reporting that he performed law enforcement duties on 91 occasions when he was not, and he was paid for that time even though he was not working.

57. Additionally, PO Barry was caught lying on official police records.

58. Defendant Sergeant Avinash Patel was found guilty of issuing a retaliatory Disorderly Conduct Summons to an individual who should not have received the summons and he lost 5 vacation days as a result.

59. Defendant Sergeant Avinash knowingly arrested the individual without probable cause, in retaliation for something the individual did.



60. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

61. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

62. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

63. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

64. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

65. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, excessive force, denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

66. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

## **FIRST CAUSE OF ACTION**

### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

67. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

68. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully entered and searched plaintiff's apartment without a validly obtained search warrant, damaged plaintiff's property, and caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, and falsely imprisoned, without probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

69. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

### **THIRD CAUSE OF ACTION**

#### **Unlawful Search**

74. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal entry into and search of plaintiff's apartment and search of plaintiff's person employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

76. Defendants lacked probable cause to search plaintiff.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **FOURTH CAUSE OF ACTION**

#### **Failure to Intervene**

80. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

82. Defendants failed to intervene to prevent the unlawful conduct described herein.

83. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

**FIFTH CAUSE OF ACTION****Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth and Fourteenth Amendments to the United States Constitution**

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

86. Plaintiff was unlawfully searched, interrogated, and falsely arrested without probable cause and without an objective factual legal basis to seize, and arrest plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

87. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

88. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, and Fourteenth Amendment Rights of members of the public.

89. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

90. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

91. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

92. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

93. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

94. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

95. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, and Fourteenth Amendments to the United States Constitution.

96. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

### **JURY DEMAND**

97. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

**PRAYER FOR RELIEF**

**WHEREFORE**, plaintiff FREDERICK JACKSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
February 12, 2023

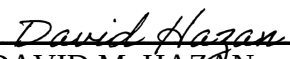
By: David Hazan  
DAVID M. HAZAN  
JACOBS & HAZAN, PLLC  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

**ATTORNEY'S VERIFICATION**

**DAVID M. HAZAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York  
February 12, 2023

  
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DAVID M. HAZAN